

26LBCV01252 26LBCV01252

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-09-10

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Case Number: 26LBCV01252 Hearing Date: September 10, 2026 Dept: S25

Motion: Defendant Long Beach Rescue Mission's Demurrer to Plaintiff Larry William Robinson's Complaint

Moving Party: Defendant Long Beach Rescue Mission ("Defendant")

Responding Party: Plaintiff Larry William Robinson ("Plaintiff")

Tentative Ruling

DEMURRER

Defendant demurs to the complaint on the ground that it is uncertain and never develops the asserted claims of professional negligence and intentional infliction of emotional distress. Defendant also asserts that the complaint fails to state facts sufficient to constitute any cause of action as the essential elements of professional negligence, intentional infliction of emotional distress or any other cognizable basis for civil liability are not alleged.

NO OPPOSITION HAS BEEN RECEIVED.

Here, the Court finds that the complaint is uncertain as it does not clearly state the causes of action asserted. (Code Civ. Proc., § 430.10, subds. (f) and (g).)

The Court SUSTAINS the instant demurrer with 20 days leave to amend.

MOTION TO STRIKE

Defendant moves the Court strike the following portions of the complaint:

The entirety of the narrative attachment to the Complaint, including the section styled as a "Declaration" and all purported "Proof" sections contained therein. (Compl., Attachment, pp. 1-10.)

Under "IV. Prayer for Relief," paragraph 2, requesting: "Injunctive Relief (Facility Modifications): An order requiring the Long Beach Rescue Mission to construct physical dividers within all resident bathroom and shower areas to guarantee basic bodily privacy." (Compl., p. 4.)

Under "IV. Prayer for Relief," paragraph 3, requesting: "Injunctive Relief (Equal Access to Services & Amenities): An order mandating that the Defendant balance and equalize services between the 90-Day Program residents and the New Life Program (NLP) residents. This includes removing discriminatory regulations, thereby ensuring all residents have equal rights to sit in any common area and watch television." (Compl., p. 4.)

Under "IV. Prayer for Relief," paragraph 4, requesting: "Production of Documents: Immediate disclosure of Incident Report No. 1, Incident Report No. 2, the full administrative file regarding Larry William Robinson's termination, and the identity of the instigating resident." (Compl., p. 4.)

Defendant asserts that the challenged portions of the complaint are irrelevant, immaterial and improper matter subject to being stricken. (Code Civ. Proc., §§ 431.10, subd. (b) and 436, subds. (a), (b).) Defendant also asserts the challenged portions of the complaint are not drawn in conformity with the laws of this state.

NO OPPOSITION HAS BEEN RECEIVED.

The instant motion to strike is MOOT.